



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 23, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 7928
(FIFTEENTH REVISION)

EXPIRATION DATE: 2027-04-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Alaska Department of Transportation and Public Facilities
Ketchikan, AK
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials subject to the limitations and requirements specified herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 entry indicated by the letter "B" in Column (10A) in that alternative stowage is authorized as specified herein.
5. BASIS: This special permit is based on Alaska Department of Transportation and Public Facilities application dated May 15, 2023, submitted in accordance with § 107.109, and additional information submitted May 30, 2023.

Tracking Number: 2023055445

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous materials authorized to be stowed "on deck" and "under deck" on cargo vessels and "on deck" on passenger vessels (indicated by the letter "B" in Column (10A) of § 172.101.	N/A	N/A	N/A

7. SAFETY CONTROL MEASURES: Packaging and stowage prescribed are as follows:

- a. Hazardous materials authorized by this special permit must be packaged in accordance with requirements prescribed in 49 CFR Part 173.
- b. Stowage is authorized on the vehicle deck of passenger vessels.
- c. Solid hazardous materials authorized by this special permit are limited to a maximum net weight of 65 pounds per outside package.
- d. The hazardous materials must be stowed on roll-on, roll-off transport vehicles.
- e. The aggregate net weight of hazardous materials per transport vehicle is limited to a 1000 pounds maximum.
- f. Carriage is limited to the Alaska Marine Highway System vessels: M/V Aurora, M/V Columbia, M/V Hubbard, M/V Kennicott, M/V LeConte, M/V Lituya, M/V Matanuska, M/V Tustumena, and M/V Tazlina.
- g. Each MV must identify operating routes and file them with the Office of Hazardous Materials Safety.

8. SPECIAL PROVISIONS:

- a. Each transport vehicle containing hazardous materials must be stowed in a manner that it is easily accessible to firefighting personnel and their equipment.
- b. "No Smoking" signs must be posted on the vehicle decks.

c. An hourly patrol of the vehicle decks must be made by a watchman. Any unusual or dangerous situation that may affect the activities covered by this special permit must be reported promptly to the vessel's master.

d. No passenger may be allowed on the vehicle deck during the voyage unless accompanied by the watchman or a responsible member of the crew.

e. A visual inspection of hazmat containers will be made by the attendant and/or vessel crewmember before a vehicle is permitted to be loaded onto the vessel. Cylinders or containers showing deterioration or damage will not be allowed onboard.

f. LPG cylinders must be physically secured from movement and operationally secured by closing shut-off valves prior to the vehicle being loaded onto a vessel. Owners / operators of recreational vehicles with installed or connected LPG cylinders shall be required to close gas operating valves within the vehicle.

9. MODES OF TRANSPORTATION AUTHORIZED: Ferry vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each vessel used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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